LAWS2100 Jurisprudence

Session 2, 2026

Unit Convenor: Dr Andrea Dolcetti

Mid-semester assessment: Research Essay (Weighting: 30%)

Due date: Sunday, 20th September 2026 (at 11:55pm Sydney time)

A penalty of five percentage points of the total possible marks (i.e., 5 marks) will be applied per day to late submissions, for a maximum of seven calendar days. Tasks that have not been submitted within seven calendar days of the due date will receive a mark of zero. Penalties for late submission will be applied consistently and equitably to all students enrolled in the Unit.

Where unavoidable circumstances affect their ability to submit an assessment, a student must submit a formal application for Special Consideration as per the Special Consideration Policy. Students should not request an informal arrangement from their tutor, lecturer, or Unit Convenor. Where an application for Special Consideration is approved, and the outcome is an extension of the due date, submissions that are received after the new due date will be subject to late penalties that are calculated from the new due date.

I. REQUIREMENTS

The mid-semester assessment for LAWS2100 Jurisprudence comprises three tasks.

1. You are required to write a research essay, following the instructions provided in Section II of this document.

2. At the end of your essay, please include a short reflective paragraph (up to 200 words, excluded from the word count) on your use of any large language model (LLM) at any stage of preparing this essay, including research, understanding source material, outlining, drafting, or editing. If you did not use an LLM at any stage, state this explicitly. Your paragraph should address:

   - What you used the LLM for (e.g. summarising a source, checking structure, editing prose)
   - What you did with its output (for example, did you adopt it, verify it against a source, or reject it?)
   - Any instances where the LLM was inaccurate, unhelpful, or where you had to push back on or correct its output
   - If an LLM helped you locate, summarise, or understand the source you annotate (see third task below), acknowledge it here as well.

   This is a disclosure-and-reflection exercise: vague statements such as "I used AI to help with my essay" will not be considered satisfactory.

3. Your third task is to identify the single most important academic journal article or book chapter for the central argument of your essay: in other words, the source your argument most substantially builds upon and/or responds to. This need not be the primary text that inspired your chosen question (e.g. Hart's *The Concept of Law* for question 1, or Fuller's *The Morality of Law* for question 2); it may, and hopefully should, be a secondary source that most shaped your reasoning.

   Attach an annotated copy of this source: annotations may take the form of margin comments or highlights with accompanying comments, written by hand or electronically (e.g. via PDF comment tools).

   Your annotations must:

- Cover at least 3 key passages that materially inform your essay's central argument.
- For each annotated passage, briefly explain (a) which claim or move in your essay it supports, and (b) whether you are building on it or responding to/against it
- Be specific enough that a marker can link each annotation to a corresponding point in your essay (e.g. by indicating a section or footnote number).

Your research essay, short reflective paragraph, and annotated source should be saved all together in one PDF file.

Please name your PDF file as follows: SURNAME_Q1_LAWS2100_2026 (or Q2, depending on the question you answer).

II. INSTRUCTIONS

1. Select and answer ONE of the two questions listed in Section III.

2. This is a research essay. In developing your answer, you should engage with the course materials and research additional scholarly sources. Good essays will present cogent arguments in support of your view and critically consider relevant counterarguments.

3. The strongest marks are earned through well-researched, clearly structured arguments that are effectively presented and discussed. Avoid superficial description. It is the depth of your research and the ensuing analysis that is important. Do not use too many words describing what others claim and be sure to provide reasons for your own claims. It is not enough to simply summarise what others have said and then jump to a conclusion as to which argument is preferred. The correctness of your preferred view needs to be explained/justified. This is the "critical analysis" aspect of your paper.

4. Give yourself enough time to digest the readings, structure your main argument, polish your writing, and edit the document. All arguments must be substantiated by cited research – unsubstantiated claims receive no credit.

5. There is no right answer, no model answer, and no 'correct' viewpoint. What matters is that you engage with the essay question using clear and robust argumentation that is based on scholarly research, e.g., published academic journal articles / academic books etc – not just non-academic sources such as newspaper articles, blogs, and government reports (you may use non-academic sources but only as supplementary references to support arguments that are already justified by academic literature, or to provide social or political context).

6. Your full name, Student ID, and your word count should be clearly visible at the top of the first page.

7. The word limit for the research essay is 1,500 words (excluding full name, Student ID, footnotes, and bibliography). This is a strict requirement and any content over the word limit will not be marked. Exceeding the word limit could mean that all, or part of, the conclusion cannot be marked: this may significantly, and negatively, impact your mark. Ensure that you have checked that your word count is not including your footnotes (this requires "unchecking" the box to include footnotes). As important as it is to not exceed the word count, falling well below the word count will likely mean that you have not engaged in sufficient critical analysis of the issue, and the different arguments canvassed in your response. This may also negatively impact your mark.

8. The essay must comply with the Australian Guide to Legal Citation (4th edition). The Guide is available here: https://law.unimelb.edu.au/mulr/aglc

9. Footnotes should only be used for references. Do not include any analysis in your footnotes.

10. You are allowed to use referencing and editing software: for example, Grammarly, Microsoft spell-check, Turnitin Draft Coach, Endnote with the AGLC 4 extension.

11. A bibliography must be provided at the end of the essay and formatted in accordance with rule 1.13 of the AGLC 4.

12. It is recommended that you follow the headings style set out in rule 1.12 of AGLC 4. However, you may follow another styling, provided that the levels of your headings are clear and demonstrate the logical development of the core argument of your essay.

13. Please use Times New Roman font for your assessment. The main text and bibliography must be 12-point font size and double-spaced. Your footnotes should use 10-point font size and single-line spacing.

14. Consider the presentation of your document. Remember to either indent the first line of a paragraph or use a blank line space, to distinguish your paragraphs. Consider 'justifying' your text rather than left-aligning text, as this provides a more polished look.

15. Although this assessment is 'AI open', please remember that LLM-generated content is not a primary or secondary source. More importantly, LLMs are based on probability models: to put it simply, what is the next most likely word. They do not understand the content they generate, and their outputs can be incorrect, misleading, or lack the nuance needed for complex situations. This means that human oversight is crucial, especially in fields like law, where accuracy and context are essential.

16. Your research essay, short reflective paragraph, and annotated source should be submitted as a single PDF document, using the appropriate Turnitin link on the iLearn page.

17. Please be aware that plagiarism detection software is used in this Unit.

18. Macquarie University course materials, including assessments, are the intellectual property of the University. You are neither permitted to upload course materials to any websites nor share them with anyone outside the University without the permission of the University. Doing so is likely to result in copyright infringement and may have disciplinary consequences.

19. Please note that it is also a breach of academic integrity to upload or otherwise share your unit notes or your response to an assessment to any online document repository site, including any service that facilitates file, note or answer sharing, without the express permission of the University. Students may review Macquarie University's Academic Integrity resources here.

20. Further details and guidance will be provided in a Q&A session.

III. ESSAY QUESTIONS – PLEASE ANSWER ONLY ONE OF THE FOLLOWING TWO QUESTIONS

1. In the Postscript to *The Concept of Law*, Hart states that the aim of the book was to provide "a theory of what law is" which is both general "in the sense that it is not tied to any particular legal system or legal culture […]" and descriptive "in that it is morally neutral and has no justificatory aims […]."[1]
   Can a general, descriptive theory of law be value-free? In answering this question, engage with the methodology debate in jurisprudence.

2. Is some minimum respect for Fuller's principles of legality essential for something to count as law, or does compliance with these principles simply make law more effective at whatever ends it serves?

[1] H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 239-40.